BENCH-I

NATIONAL COMPANY LAW TRIBUNAL
KOLKATA BENCH
KOLKATA

CP (CAA) No. 729/KB/2018
CA (CAA) No. 562/KB/2017

Present: Hon'ble Member (J), Shri Jinan K.R.

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING ON 5th FEBRUARY, 2019, 10:30 A.M.

Name of the Company	The Bormah Jan Tea Co Ltd. & Anr.		
Under Section	230-232		
Sl. No.	Name & Designation of Authorized Representative (IN CAPITAL LETTERS)	Appearing on behalf of	Signature with date

1. Vinet Rai, AROC — RD, ER — 5/2/19
02. Suyash Kapoor — Intervening Application Shareholder — Suyash 05/02/19.

1. Mr. D N Sharma, Advocate
2. Mr. Aniket Agarwal Advocate
3. Ms. Pushpa Saha, Advocate

} Advocates for the petitioners — 5/2/19

SHRI. K.S. PRADHAN, J.D.
Vinet Rai, AROC

RD, ER — 5/2/19

ORDER

Ld. Counsel for the petitioners and the Ld. Joint Director as well as Ld. Asstt. ROC from the Office of the RD(ER) is present. Mr. Suyash Kapoor, an intervener, in person is also present.

One intervener who owned 1.17% shareholding in the transferor company intervened by filing an affidavit. The affidavit has

not been served on the Regional Director, Eastern Region, Ministry of Corporate Affairs. Ld. Jt. Director representing the RD(ER) submits that objection raised on the side of the intervener cannot be addressed without getting a copy of the objection.

According to the Ld. Counsel appearing for the petitioners the proviso to sub-section (4) of Section 230 of the Companies Act, 2013 stipulates that objection to the compromise or arrangement shall be made only by persons holding not less than ten percent of the shareholding in the applicant company. Objector has not turned up in the meeting, and not participated in the meeting and not exercised his right by way of proxy or e-vote for the approval of the scheme and hence the objector has no locus standi to raise objection, argued by the Counsel for the applicant.

The objector turned up in response to the notice published calling for raising objections by any body affected with the approval of the scheme, Therefore, the objector is to be heard. However, no copy of the objection seen given to the RD. Directed to give copy.

List it for further consideration and for hearing on 01/04/2019.

Sd

(Jinan K.R.)
Member (J)